

HOUSE BILL 1381

By Harris

AN ACT to amend Tennessee Code Annotated, Title 13,
Chapter 21, relative to municipal rental property
registries.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 13, Chapter 21, is amended by adding
the following as a new part:

13-21-401.

As used in this part:

(1) "Dwelling unit" means a building or structure or part thereof that is
used for a home or residence by one (1) or more persons who maintain a
household;

(2) "Governing body" means the council, commission, or board, or other
legislative body, charged with governing a municipality;

(3) "Municipality" means any county, including any county having a
metropolitan form of government, or incorporated city or town in this state; and

(4) "Residential rental dwelling unit" means a dwelling unit that is leased
or rented to one (1) or more tenants. However, a dwelling unit occupied in part
by the dwelling unit owner is not a residential rental dwelling unit unless
otherwise provided by the zoning ordinance of the municipality.

13-21-402.

(a) A municipality may create, implement, and enforce a rental property registry
for all residential rental dwelling units within the municipality's jurisdiction.

(b) A municipal registry of residential rental dwelling units must include, at a minimum, the following:

- (1) The physical address of each residential rental dwelling unit;
- (2) The name, mailing address, and contact information of the owner of the residential rental dwelling unit;
- (3) The name and contact information of the property management entity for the residential rental dwelling unit, if any;
- (4) The number of separate rental units at the residential rental dwelling unit; and
- (5) Verification that the residential rental dwelling unit complies with applicable building codes, zoning ordinances, and health and safety regulations.

13-21-403.

(a) Each owner of a residential rental dwelling unit located in a municipality that adopts a registry pursuant to § 13-21-402 shall register the residential rental dwelling unit with the municipality on an annual basis.

(b) A municipality may charge a reasonable fee to cover administrative costs associated with maintaining the registry.

(c) A failure by an owner to register a residential rental dwelling unit may result in civil penalties or other legal action, as established by the governing body of the municipality.

(d) The following properties are exempt from registration under this section:

- (1) Owner-occupied residential rental dwelling units that rent fewer than two (2) units on the premises; and
- (2) Residential rental dwelling units owned by governmental or quasi-governmental entities.

13-21-404.

(a) A municipality that adopts a registry pursuant to § 13-21-402 shall integrate the registry into the municipality's code enforcement processes to assist in monitoring and enforcing compliance with health, safety, and housing standards.

(b) A municipality may inspect a registered residential rental dwelling unit to ensure compliance, consistent with state and local laws.

13-21-405.

(a) Non-sensitive information that is contained in a registry established under this part is not confidential and may be made accessible to tenants and the public.

(b) Proprietary or personal information contained in a registry established under this part is confidential and not open to inspection as a public record.

13-21-406.

This part does not preempt or override any existing state law or rule, but must be construed to supplement such laws and rules.

13-21-407.

A municipality that establishes a registry under this part shall submit an annual report to the department of economic and community development, in such manner as the department may require, that details the following:

- (1) The number of properties registered;
- (2) Code violations identified and resolved; and
- (3) The overall effectiveness of the registry in improving housing conditions.

SECTION 2. This act takes effect July 1, 2025, the public welfare requiring it.